

Sarvottam Rolling Mills Pvt. Ltd. v. Managing Director, PVVNL

Allahabad High Court · Division Bench · 20 September 2022 · Writ-C No. 44254 of 2008 · Writ-C No. 44254 of 2008 · **Writ dismissed following Dev Prayag on Clause 4.20**

HEADNOTE

A writ challenging a 2008 demand notice and Clause 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed, the Court following its 2017 holding in Dev Prayag Paper Mill that Clause 4.20 was not to be interfered with.

FACTUAL SUMMARY

The petitioners challenged a demand notice dated 25 July 2008 issued by the Executive Engineer, Electricity Urban Distribution Division-I, Town Hall, Muzaffarnagar, and also assailed Clause 4.20 of the U.P. Electricity Supply Code, 2005, under which the notice was sent. Counsel submitted that the Division Bench order dated 21 March 2017 in Writ-C No. 30898 of 2016 (*M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.*) and connected petitions had already held that Clause 4.20 was not to be interfered with and had dismissed those writs.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

challenge to demand notice and clause 4.20

HOLDING

A writ petition challenging a demand notice issued under Clause 4.20 of the Electricity Supply Code, 2005, and the clause itself, is dismissed, the Court following its earlier holding in Dev Prayag Paper Mill that Clause 4.20 is not to be interfered with. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s. Dev Prayag Paper Mill (Pvt.) vs. State of U.P. & Ors.</i> Writ-C No. 30898 of 2016 (order dated 21.3.2017)			1	Referred